

F.No. 1-3/2026-SS-3
Government of India
Ministry of Education
Department of School Education & Literacy

Kartavya Bhavan-II, New Delhi

Dated: 30th June, 2026

Subject: Removing the requirement of Essentiality Certificate or "Permission to Establish" Certificate-reg.

A copy of the advisory on repealing of obsolete provisions relating to removing the requirement of Essentiality Certificate or "Permission to Establish" Certificate is enclosed herewith for information and compliance.



(S. K. Suman)

Under Secretary to the Government of India

Email: sk.suman@gov.in

To

Education Secretaries of all the States/UTs

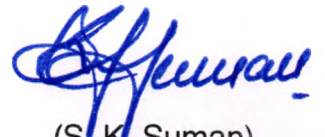
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The Right of Children to Free and Compulsory Education (RTE) Act, 2009 and the RTE Rules framed thereunder by the States/UTs provide a comprehensive framework for recognition of schools imparting elementary education. In addition, schools are also required to obtain affiliation from the concerned education board, wherever applicable, in accordance with the prescribed norms and procedures. It has been observed that in certain States/UTs, provisions contained in pre-RTE State education laws continue to require schools to obtain a "Permission to Establish", "Essentiality Certificate", "Notice of Intention", or other similar pre-establishment approvals prior to seeking recognition under the RTE Act, 2009. These requirements pre-date the enactment of the RTE Act and, in many cases, substantially overlap with the scrutiny undertaken during the recognition process under the RTE framework. The continued operation of such parallel approval mechanisms may result in duplication of procedures, longer approval timelines, additional compliance costs for school managements, and increased administrative burden on State authorities.

2. In view of the above, States and Union Territories may take appropriate legislative and administrative measures to remove or discontinue requirements relating to "Permission to Establish", "Essentiality Certificate", "Notice of Intention", or any other similar pre-establishment approval, wherever such requirements are no longer necessary.



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